

23VECV01359 23VECV01359

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Tentative Ruling

Shirian v. Fox Capital, Case no. 23VECV01359

Hearing date September 9, 2026

Kamat Defendants' Motion for
Summary Judgment - UNOPPOSED

Defendant
Rediger's Motion for Summary Judgment - UNOPPOSED

Plaintiff
Shirian sues defendants Fox Capital, LLC, Rediger Investment Corporation and K. and S. Kamat (together "Kamat defendants") for negligence and premises liability. Plaintiff alleges he was injured when a portion of the mezzanine collapsed in a leased commercial unit. Rediger and the Kamat defendants separately move for summary judgment. The motions are unopposed.

A
motion for summary judgement must be granted if no triable issue of material fact exists as to each cause of action. Code Civ. Proc. §437c(a), (c); Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843. To obtain summary judgment, moving party must prove each element of the cause of action. Harris v. Rudin, Richman & Appel (2002) 95 Cal.App.4th 1332, as modified Mar. 5, 2002. A defendant can do so by showing plaintiff cannot establish one or more elements of the claim or there is a complete defense to that claim. Aguilar, supra, at 853. Once moving party meets this burden, the burden shifts to

responding party to show a triable issue of material fact as to that cause of action or a defense thereto. Harris, supra, at 1337.

Kamat Defendants' Motion for Summary Judgment

The

Kamat defendants move for summary judgment on plaintiff's two causes of action for negligence and premises liability. Both negligence and premises liability have the essential element of duty. In Preston v. Goldman (1986) 42 Cal.3d 108, the California Supreme Court decreed that former owners do not have ongoing duties after the sale of a premises when there is a subsequent injury. "The general rule of law is that once a seller of land has sold that land he is not subject to liability for injuries, sustained by a third person while on the land after the buyer has taken possession, which were caused by any dangerous condition, whether natural or artificial, which existed at the time the buyer took possession. This general rule has an exception where the seller conceals or fails to disclose to his buyer such dangerous condition and this exception is as follows: (a) The buyer does not know of the condition or the risk involved therein, and, (b) The seller knows of the conditions and the risk involved therein and has reason to believe that the buyer will not discover the condition or realize the risk." Id.

The

Kamat defendants previously owned the subject premises until it was sold to Fox Capital on 9/10/26. SSMF 1. Plaintiff's injury occurred 3/28/21. SSMF 2-4. The Kamat defendants have had no further involvement or obligations concerning the subject premises following the sale. SSMF 6-9. When the Kamat defendants were the owners of the subject premises they employed Rediger as property manager. SSMF 10. All responsibility for overseeing the subject premises was delegated to Rediger, which in turn assigned those responsibilities to leasing third-parties. SSMF 10-11. The Kamat defendants had no role in installing, building, permitting, designing, creating, or other involvement in a mezzanine level constructed on the subject premises. SSMF 12. These undisputed facts are sufficient to shift the burden to plaintiff.

No

opposition, timely or otherwise, has been filed. Plaintiff cannot meet his burden to show a triable issue of fact as to duty, or as to the elements under Preston, supra. GRANTED.

Defendant Rediger's Motion for Summary Judgment

Rediger

moves for summary judgment on plaintiff's two causes of action for negligence and premises liability. The court incorporates the Preston, supra caselaw above. Rediger, as the Kamat defendants' agent, is subject to the same duty standards set forth in Preston, with the caveat that an agent's duty to a third person is "determined by an examination of whether a reasonable person would have foreseen an unreasonable risk of harm to the third person and whether in view of such risk, the [agent] exercised ordinary care under the circumstances." Hall v. Rockcliff Realtors (2013) 215 Cal.App.4th 1134, 1140.

Rediger

was not in possession of the subject premises, was not aware of a defective condition, did not create the condition, and that it was the tenant who by its lease contract assumed all responsibility for the interior of the subject premises including the mezzanine. SSMF 5-7. The lease for the subject premises expressly allocates all interior maintenance to the tenant and limits the owner/ agent to the bearing walls, roof and outside of the building. Id. It is undisputed that Rediger never owned the subject premises, and that the subject premises was sold prior to plaintiff's injury. Rediger had no involvement with the subject premises after it was sold. SSMF 8. This is sufficient to shift the burden to plaintiff.

The

motion is unopposed. Plaintiff cannot meet his burden. GRANTED.